Taxation of Digital Earnings in North Macedonia

Statutory Obligations, Double Taxation and Legal Certainty for Citizens

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ABSTRACT

This paper examines the taxation of income received through digital platforms by individuals resident in North Macedonia. Drawing on statutory analysis, selected scholarly literature and a limited comparison with Serbia and international rules on platform reporting, it distinguishes the classification of income, the tax base, foreign withholding and the domestic foreign tax credit. Particular attention is paid to the relationship between electronic service and limitation periods, without assuming that the date of an act is also the date of its dispatch. A hypothetical example illustrates the procedural issues without presenting individual case data. The paper proposes an evidential protocol linking platform statements, bank receipts and the procedural case file. It concludes that digital income requires accurate legal classification and a procedure capable of scrutiny; the outcome of any individual case depends on the relevant version of the law and the evidence.

Keywords: platform income; tax residence; tax base; foreign tax credit; electronic service; limitation periods; legal certainty.

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1 Introduction and the research problem

The digital economy has changed the composition of personal income. Video creators, educators, streamers and other independent content producers earn revenue from advertising, subscriptions, copyright and contractual services through international platforms. A foreign legal entity often makes the payment, while the creative work and management of the channel take place in North Macedonia. This cross-border structure matters in law because the route taken by a payment is distinct from the source of the income and the recipient's tax residence.

The question is not whether every receipt from abroad should be exempt from tax. It is whether the particular tax base, income category, foreign tax paid, reporting deadlines and procedural safeguards have been established correctly. The rule of law requires consistent application of substantive and procedural tax law, rather than an assessment based on the mechanical identification of a foreign-currency receipt.

Public debate often conflates three distinct allegations: that a new tax has been introduced, that the same income is being taxed twice, and that the state has waited too long to enforce an existing obligation. Each requires different facts and a different legal inquiry. This paper deliberately keeps them separate, so that legitimate concern does not become an imprecise legal argument.

2 Purpose, methodology and limits of the research

The purpose is to identify the legal rules applicable to a Macedonian tax resident earning income through platforms such as YouTube, explain the practical mechanisms of foreign tax withholding, and assess the procedural standards governing inquiries by the Public Revenue Office (PRO). The method combines statutory analysis, a comparative examination of international tax mechanisms, and critical reading of official announcements and media responses.

The paper distinguishes three sources of knowledge: verifiable legislation or an official document; media reporting, which may convey statements but does not establish an individual's tax liability; and the author's legal assessment. Dissatisfaction attributed in the media to workers and students abroad is not presented as empirical evidence of equivalent widespread dissatisfaction among YouTube creators.

The reference date is 21 October 2026. The statutory review draws on the consolidated texts available from the PRO, listing amendments up to No. 3/2025 for the Tax Procedure Act (TPA) and No. 274/2022 for the Personal Income Tax Act (PITA). This does not confirm that every issue of the Official Gazette up to the reference date has been examined. An individual case requires verification of the original publications, commencement dates and transitional provisions. The manuscript does not establish individual tax evasion, foreign tax withholding or the unlawfulness of a particular assessment.

Research questions and contribution

The research asks three connected questions: how taxable platform income is identified; how a foreign tax credit is evidenced and limited; and which procedural facts determine whether assessment and collection comply with the applicable time limits. Its contribution is a proposed unified evidential protocol linking platform statements, bank entries and the tax case file. This is a normative and practice-oriented study, without any claim to measure the digital-creator population statistically.

Doctrinal literature and the limits of comparison

Oei and Ring (2016) distinguish the applicability of existing substantive tax categories from the difficulties of reporting and enforcement. Their argument helps avoid the assumption that a new platform necessarily requires a new tax. Their subject, however, is the sharing economy in the United States, rather than a Macedonian dispute concerning YouTube income. [Oei and Ring 2016]

In their empirical study of drivers' online discussions, Oei and Ring (2017) identify differences between understanding reporting obligations and understanding expenses and deductions. This supports the need for clear institutional guidance. Their findings are not adopted as data about Macedonian creators. Their 2018 chapter further connects classification, record-keeping and compliance. [Oei and Ring 2017; Oei and Ring 2018]

The 2017 OECD Model Tax Convention is used as a historical analytical framework. Article 12 and its Commentary require a distinction between payments for rights and payments for services; Article 23 B and its Commentary explain the credit method. Paragraphs 60–61 of the Commentary leave scope for domestic rules and concern tax effectively paid in accordance with the treaty. Neither the Model nor its Commentary constitutes domestic legislation or a particular bilateral treaty. They are not presented as the latest edition available in 2026. [OECD 2017]

The 2020 OECD Model Rules address information concerning certain sellers and services provided through platforms. According to the European Commission's explanation, DAC7 covers the rental of immovable property, personal services, the sale of goods and the rental of means of transport; it does not introduce a new tax on platform income. These frameworks provide comparative context for verifiable reporting. The paper does not assume that every YouTube advertising payment falls within their scope, or that the Directive itself creates an obligation under Macedonian law. [OECD 2020; DAC7]

3 Tax residence and worldwide income

The principal legal criterion is neither the payer's nationality nor the currency of payment, but the recipient's tax residence and the statutory category of income. Within the scope of the law, a Macedonian tax resident may be required to report taxable income earned abroad. The state's taxing power is not excluded merely because the money passes through an Irish company or American infrastructure.[1]

In each case, the authority must establish whether the individual actually met the conditions for tax residence in the year under examination. It must not rely on an automatic assumption drawn solely from the location of the bank account. Where an individual resides or works in two states, the domestic residence criteria and the provisions of an applicable double taxation treaty may be relevant.

Residence is a preliminary issue on which the analysis of income sources, tax credits and time limits depends. The same person's circumstances may differ from one calendar year to the next. An assessment must therefore be annual and individual, rather than generalised.

1 PITA. Articles 4–5; residence and the scope of taxation. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

4 The nature of income from YouTube and Google

Income received through a digital platform has no single automatic legal classification. YouTube may pay revenue connected with advertising and the use of content; a platform may facilitate paid memberships; and a creator may receive sponsorship payments or provide services to a client separately. Different sources may entail different legal classifications, evidential requirements and rules on deductible expenses.

In practice, the decisive considerations include contractual terms, the nature of the obligation, the actual working arrangements, continuity, independence and any business registration. The description 'Google Advertising Payment' on a bank statement is a strong indication of a transaction's origin, but is not a complete legal analysis. The PRO should explain its classification, while the taxpayer should provide the available statements and contractual terms.

For 2020 and 2021, a present-day description of platform services must not be used without explanation as though it had been identical at every earlier point. The substantive provision then in force, and the contractual and factual model operating at the time, require examination. This is particularly important when distinguishing employment income, copyright income, income from independent activity and other income.

Income classification changes the tax base

Articles 38–40 PITA govern copyright income and standard expense deductions. Article 40 provides deductions of 50%, 40%, 30% or 20%, depending on the type of work. The 40% category includes musical and cinematographic works. The 30% category includes scientific, professional and journalistic works, film recording and the specified forms of performance, including theatrical and film acting. The 20% category covers translations, lectures and the other works and related-rights subject matter specified in that category. These distinctions require examination of the particular work and the legal nature of its remuneration; publication on YouTube does not automatically establish entitlement to a 40% deduction. The choice cannot be made merely by reference to the platform or the American label 'royalties'. For other income, Article 74(1) starts from gross income, subject to specific statutory exceptions. For independent activity, Article 24 links net income to total receipts and expenditure under that regime. [PITA; Copyright deductions]

For comparison only, consider a hypothetical gross payment of MKD 100,000 and an assumed tax rate of 10%. If a 40% copyright deduction properly applies, the tax base is MKD 60,000 and the tax MKD 6,000. A 30% deduction produces a base of MKD 70,000 and tax of MKD 7,000; a 20% deduction produces a base of MKD 80,000 and tax of MKD 8,000. Classification as other income without an applicable deduction produces a base of MKD 100,000 and tax of MKD 10,000. These examples do not classify any particular earnings and do not include every possible annual allowance or foreign tax credit.

The historical limits of platform withholding

YouTube's official questions and answers state that the revised terms applied outside the United States from 1 June 2021, with withholding potentially beginning in the July payment for June earnings. A general reference to this regime therefore does not establish withholding in 2020 or in every month of 2021. Nor does the American label 'royalties' automatically determine the category under Macedonian law.[2]

2 Google 2021. Sections 'What are the main changes' and 'How will this affect my YPP monetization'. Full source and link in the bibliography. Checked on 21 October 2026.

Questions for legal scrutiny

Is there a contract for the particular service? Who bears the business risk? Does the payment represent copyright income, payment for services or income from an independent activity? Is the individual registered for that activity, and are relevant invoices available?

5 The tax base, gross earnings, receipts and withholding

A bank receipt may represent a net payment, while the platform statement separately records gross earnings, adjustments, refunds, tax withholding and fees. It is therefore not always mathematically correct to treat the bank receipt automatically as the gross tax base. Whether the base is gross income or an allowable net amount depends on the income category and the applicable statutory rules.[3]

Assessment requires a link between the earnings attributable to a particular calendar period, the payment date, currency conversion and any tax withheld. Different currencies, intermediary banks and accumulated monthly payments may cause timing differences. The evidential matrix should reconcile the platform statement, the foreign withholding document and the foreign-currency bank statement.

It is particularly important not to count the same receipt twice because repeated reporting has placed it in several documents. Equally, a platform commission is not, by definition, a tax. The authority must provide a reasonably verifiable calculation that enables the taxpayer to understand what has been taxed, why, and in what amount.

6 International double taxation and the underlying facts

Two distinct concepts must be separated: the economic perception that two amounts have been deducted from the same earnings, and juridical double taxation of comparable income belonging to the same person in two jurisdictions. The former may result from fees or exchange-rate differences. The latter requires identification of the states, the tax base, the type of tax and its ultimate payment.

For YouTube earnings, Google may withhold United States tax on the relevant revenue from viewers in the United States. Google expressly explains that the regime depends on the tax information supplied and the nature of the income. It should not be assumed that every payment from Google Ireland Ltd constitutes Irish-source income on which Ireland has withheld tax: the payer's registered seat and the jurisdiction imposing withholding are different facts.[4]

Domestic law allows Macedonian tax to be reduced, under specified conditions, by foreign tax paid, up to the statutory limit. This does not mean that all foreign tax withheld will invariably be refunded or that every deduction qualifies for relief. Evidence is required concerning the same taxpayer, the corresponding income, the relevant period and the type of foreign charge.[5]

3 PITA. Articles 8–9 and Article 74; the tax base depends on the income category. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

4 Google tax. Section 'Where U.S. tax requirements apply'. Full source and link in the bibliography. Checked on 21 October 2026.

5 PITA. Article 8(2) and Article 9. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

Google's withholding regimes

Where valid tax information has been supplied, Google specifies a rate of 0–30% on the relevant earnings from viewers in the United States. For a non-resident recipient without an applicable treaty benefit, the basic regime described is 30% on that portion; the actual rate and status must be checked against the account profile and documents. Without tax information, an individual account may be subject to withholding of up to 24% of worldwide earnings. For a business account held by a recipient outside the United States, Google specifies 30% of United States earnings. The claim that 'everyone without a form pays 24% on everything' is therefore too broad. [Google tax]

If hypothetical worldwide earnings are MKD 100,000, of which MKD 20,000 is attributable to the United States, 30% of the United States portion is MKD 6,000, whereas 24% of the whole is MKD 24,000. This compares platform regimes; it does not calculate an allowable Macedonian tax credit. In particular, backup withholding must not automatically be treated as fully creditable foreign tax without examining its nature, its basis and any possible refund.

Questions for legal scrutiny

Which state withheld the tax, on which part of the income, and according to which document? Was it recognised in the foreign annual tax return? Are the amounts comparable by year, taxpayer and category of income?

7 Evidence of tax withheld by Google

Potentially relevant Google documents include AdSense for YouTube payment statements, withholding-tax details and, where issued, United States Form 1042-S. These documents help identify the actual withholding and the foreign tax jurisdiction. They must not be replaced by a general assertion that 'Google has already deducted tax'.

The PRO's official materials on foreign income point to the need for evidence of any tax paid, including a certificate from a foreign tax authority. In practice, this raises the question whether documents issued automatically by the platform, together with other verifiable records, are sufficient, and how the taxpayer can obtain a formal certificate. Administrative requirements must have a statutory basis and be capable of fulfilment in practice.[6]

A reasonable evidential standard should rest on verifiability and the possibility of international administrative co-operation, rather than paper format alone. Where a document is rejected, the authority should explain precisely which statutory element remains unproved and which realistically obtainable alternative document it will accept.

Documents and calculation of the tax credit

Form W-8BEN supplies tax information and may claim treaty benefits; it does not prove the amount of tax paid. A payment statement and Form 1042-S may show withholding, but Form 1042-S is issued by the payer or withholding agent and is not automatically equivalent to a certificate issued by the IRS. If the PRO requires certification from a foreign authority, it must be clarified what additional evidence is needed and how the document will be verified.[7]

6 PRO 2025. Section on tax already paid abroad. Full source and link in the bibliography. Checked on 21 October 2026.

7 Google tax. Section 'What kind of tax reporting documents does Google provide'; for the domestic evidential requirement, see PRO 2025. Full source and link in the bibliography. Checked on 21 October 2026.

The practical difficulty is institutional. If the agent's standard Form 1042-S does not satisfy the required form of certification by a foreign authority, it is necessary to identify which document can actually be obtained and how the PRO verifies it. This edition does not establish that obtaining such certification is impossible. The proposal de lege ferenda is that the PRO should publish a list of acceptable tax forms, alternative evidence and a procedure for official verification, clearly distinguishing tax withheld, tax remitted and tax subsequently refunded.

For a simplified example involving a wholly comparable tax base, let D denote domestic tax on the same income and F the substantiated, creditable foreign tax. The credit C is the smaller of F and the applicable domestic statutory ceiling; the additional domestic payment is D − C. The example does not determine whether all income arises from the same source, or resolve allocation between different income categories or periods.

Hypothetical base	Domestic tax	Creditable foreign tax	Credit	Additional tax
MKD 100,000	MKD 10,000	MKD 0	MKD 0	MKD 10,000
MKD 100,000	MKD 10,000	MKD 6,000	MKD 6,000	MKD 4,000
MKD 100,000	MKD 10,000	MKD 15,000	MKD 10,000	MKD 0

The figures are wholly hypothetical, assuming a 10% rate, accepted evidence and no further allowances. The uncredited excess of MKD 5,000 in the third row does not automatically create a claim for repayment from the Macedonian budget.

8 Double taxation treaties

Ratified treaties may allocate taxing rights between states and affect the methods used to eliminate double taxation. The existence, substantive scope or particular rate of a treaty must not, however, be asserted without checking the treaty applicable to the relevant state and year.

Income from Google raises at least three geographical questions: where the taxpayer is resident; which state may tax the particular income; and in which state tax may have been withheld. It is wrong to assume automatically that a treaty with the payer company's home state resolves United States withholding on earnings from viewers in the United States.

The correct sequence is to establish the legal category and the foreign tax jurisdiction, examine the particular treaty, and then calculate the domestic credit. The treaty's terminology must also be checked, since domestic income categories do not always correspond to its definitions.

The PRO register includes a treaty with Ireland, stating that it has applied since 1 January 2010. Its residence, income and double taxation relief provisions must be examined against the particular relationship. It does not apply to United States tax merely because the payer is an Irish company. North Macedonia does not appear in the IRS A-to-Z list examined. This is a finding from the public list, not evidence of a particular historical treaty entitlement in 2020 or 2021.[8]

8 Ireland. Articles 1–4 and 21; for the United States list, see IRS in the bibliography. Full source and link in the bibliography. Checked on 21 October 2026.

9 Procedure under Articles 41 to 44 of the Tax Procedure Act

Article 41 governs the initiation of tax proceedings, while Articles 42 and 43 distinguish tax acts from administrative tax acts and address their form. In a disputed case, merely stating the date on which a computer-generated calculation was prepared is insufficient. The document's legal nature, its immediate legal consequences and the remedies available must be identified.

In the text examined, Article 44(5)–(7) permits electronic service through the PRO information system or the last notified email address, makes it subject to the taxpayer's prior consent, and deems service to occur on the fifth day after dispatch. The consent, channel, precise act and evidence of dispatch must therefore be checked. Actual reading is not a general prerequisite for this statutory fiction. This wording applies only after verification of the version in force on the date of service.[9]

Legal certainty is not exhausted by the technical generation of a document. It requires a real opportunity to understand the factual basis, challenge it and exercise a remedy in time. The authority should therefore be asked for a clear procedural chronology, rather than a repeated assertion that 'the system accepted the calculation'.

Questions for legal scrutiny

Which is the original electronic act? Is there evidence of dispatch, and which statutory requirements for service have been met? Were information on remedies and an opportunity to make representations provided?

10 The tax base and assessment by the authority

Article 74 PITA governs the tax base for other income; it is not a general power of assessment by the authority. Where an electronic calculation has not been filed or approved, Article 92(1) and (2) of the text examined is relevant, providing for a calculation for the particular category of income. Articles 77 and 79 TPA govern methods of assessment and the form and content of the tax decision. The specific electronic calculation and the tax decision must be distinguished by reference to the applicable provision and their consequences.[10]

A right to use banking data does not confer a right to classify every receipt as 'other income' without reasons. The taxpayer must be able to produce the contract, Google statements and evidence of any withholding. If the authority's act departs from that evidence, the departure should be explained.

The statutory basis for obtaining banking data extends beyond the PRO's general evidential powers. In U. no. 50/2019, referring to U. no. 61/2019, the Constitutional Court dismissed the renewed challenge to the amendments to the Public Revenue Office Act (No. 7/2019), including Article 17, because it had already examined the matter. It separately declined to institute proceedings concerning the Rulebook published in No. 26/2019; its reasoning also addresses the banking-secrecy exceptions in Article 112(3), points 2-a and 3, of the Banking Act. The ruling does not establish that every individual acquisition of banking data was lawful. For a particular transfer, the authorisation, purpose, period and scope must be examined. [Banking data]

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9 TPA. Article 44(5)–(7). Full source and link in the bibliography. Checked on 21 October 2026. Tax Procedure Act, Official Gazette No. 13/2006, with amendments listed in the source up to No. 3/2025.

10 PITA. Article 74 and Article 92(1)–(2); for the TPA, see Articles 77–79. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

The substantive tax treatment of 2020 and 2021 requires a historical examination of the versions then in force. Procedural rules and their transitional provisions require a further temporal analysis. Identifying the date of the relevant action is more precise than retrospectively assessing every action against a single present-day consolidated text.[11]

A further check of the PRO's public page on the 2026 tax allowance again shows the legislative sequence ending with No. 274/2022. No subsequent amendment to PITA up to the reference date was identified in the public sources examined. This supports the sequence used, but does not conclusively establish that there is no other relevant official publication, authentic interpretation, temporary measure or judicial decision. [PRO 2026]

Matrix of historical applicability

The concluding provisions appended to the consolidated text reproduce Article 24 of Amendment No. 275/2019, providing a 10% rate for the income categories concerned in 2020, 2021 and 2022. They also reproduce Article 15 of Amendment No. 290/2020, postponing the application of specifically listed provisions until 1 January 2021. Amendment No. 85/2021 contains particular exemptions from advance payments for specified taxpayers. These transitional links supplement the historical overview but do not replace comparison with all original official publications.[12]

Period	Statutory position examined	Case-specific verification
2020	Principal Act No. 241/2018; transitional regime under No. 275/2019.	Income category and date; specific temporary measures where relevant.
2021	Amendments Nos. 290/2020 and 85/2021; read the rate alongside the transitional rules.	Commencement of the particular amendment and conditions for any exemption.
Actions in 2025 and 2026	Article 7 TPA requires a temporal distinction between substantive and procedural law.	Version in force on the date of the act and of service; all relevant transitional provisions.

Reporting deadlines and the scope of exceptions

Article 88(1), point 4, PITA, as examined, provides for the electronic calculation of foreign income by the tenth day of the following month. The exception in paragraph 2 concerns foreign salaries and pensions on which foreign tax has been paid, with a deadline of 31 March of the following year. The salary and pension deadline does not automatically extend to YouTube advertising, subscriptions or sponsorships. The February 2026 announcements must be read within their stated scope of employment income earned in 2025; they do not create a new rule for every item of platform income earned in 2021.[13]

11 TPA. Article 7; substantive provisions applicable when the obligation arose and procedural provisions applicable when the action was taken. Full source and link in the bibliography. Checked on 21 October 2026. Tax Procedure Act, Official Gazette No. 13/2006, with amendments listed in the source up to No. 3/2025.

12 PITA. Pages 35–38, provisions appended outside the consolidated text; Article 24 of No. 275/2019, Article 15 of No. 290/2020 and provisions of No. 85/2021. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

13 PITA. Article 88(1)–(2); compare PRO 1199 and PRO 1200. Full source and link in the bibliography. Checked on 21 October 2026. Personal Income Tax Act, Official Gazette Nos. 241/2018, 275/2019, 290/2020, 85/2021 and 274/2022, subject to the temporal qualifications stated in the paper.

Questions for legal scrutiny

Which specific statutory category does the PRO invoke? Does the calculation distinguish platform earnings from the net bank receipt? Has contrary evidence been considered?

11 Limitation periods for assessment and collection

Article 110 TPA provides that time begins to run at the end of the year in which the relevant factual circumstances arose, with an ordinary period of five years and a ten-year period in cases of tax evasion. It also governs interruption by an administrative tax act relating to those circumstances, the period until proceedings are finally concluded, the new period following interruption, and the ultimate ten-year limit. Unreported income is not, by itself, treated as proven evasion. As a conditional calendar illustration, without a relevant interruption or special circumstance, the ordinary period for 2020 ends on 31 December 2025, and that for 2021 on 31 December 2026.[14]

Not every notification or informational document necessarily has the same legal force. Its legal nature, date, content and the relevant procedural rules must be examined. Equally, defective service does not itself prove that no interruption occurred. It raises an important evidential and legal issue, but cannot replace analysis of the act.

Article 122-a(1) TPA links the ten-year limitation period for collection to the end of the year in which the tax and ancillary tax charges fell due. The starting point is not automatically the date on which the income was earned. Paragraphs 2 and 3 separately govern claims for repayment of overpaid or incorrectly paid tax. These distinctions require examination of assessment, the due date and the particular procedural actions taken.[15]

Late dispatch and the transition to the following year

In a hypothetical example, if dispatch on 29 December 2025 is assumed and the requirements for electronic service are satisfied, a simple count of five calendar days, excluding the day of dispatch, leads to 3 January 2026. That is a Saturday. It must separately be established whether the rules on non-working days apply to this statutory fiction, rather than merely to a deadline for filing a document. No definitive date of service is determined without that inquiry. The date of preparation of the act must not be substituted for its date of dispatch.

Article 110(4) links interruption to any administrative tax act relating to the relevant factual circumstances and to the period until the proceedings are finally concluded. The paragraph examined does not expressly state either that making an act is always sufficient or that service before expiry is invariably required. Two legal arguments must therefore be considered. If valid service is necessary for the particular interruptive effect, service falling in 2026 matters to the ordinary period for 2020. If an earlier valid administrative tax action is the relevant event, the result may differ. A systematic interpretation and relevant case law are needed; no case law resolving this particular issue has been identified here. [TPA, Articles 42–44 and 110]

Without proof of prior consent, compliance with the conditions for electronic service under Article 44(6) cannot be assumed. This does not mean, however, that personal service is the only available route: other statutory methods, including postal service, must also be examined. A defective email does not prove the absence of any other

14 TPA. Article 110(1)–(6). Full source and link in the bibliography. Checked on 21 October 2026. Tax Procedure Act, Official Gazette No. 13/2006, with amendments listed in the source up to No. 3/2025. Article 110(4) appears on printed page 24 of the PRO PDF; rechecked on 22 October 2026.

15 TPA. Article 122-a(1)–(3). Full source and link in the bibliography. Checked on 21 October 2026. Tax Procedure Act, Official Gazette No. 13/2006, with amendments listed in the source up to No. 3/2025.

relevant action. If the underlying income year is 2021, the illustrative ordinary deadline is 31 December 2026, which materially changes the temporal analysis.

Questions for legal scrutiny

When did the relevant factual circumstances arise? Which act was made before the period expired, and did it interrupt time? Are there separate collection proceedings?

12 Analysis of publicly reported reactions

In December 2025, Macedonian media reported that the PRO had sent approximately 10,000 invitations concerning income earned abroad. Reports conveyed citizens' claims that tax had already been paid abroad, while the PRO maintained that it was applying an existing statutory obligation rather than introducing a new tax. Both positions must be presented, with a clear distinction between a statement and a legally established position.[16]

The Faktor article examined names the Director as Elena Petrova and states that some invitations concern income earned in 2020. This is relevant to the timing immediately before the end of 2025. The article does not state that all 10,000 invitations relate exclusively to 2020 or have an identical effect on limitation periods. [Faktor]

An important qualification is that the objections reported in the media include seasonal employment, work abroad and other forms of earnings. Their factual and legal treatment is not automatically identical to that of YouTube income. Media criticism nevertheless provides grounds to consider systemic difficulties such as delayed information, unclear evidential requirements and uncertainty about the tax credit.

Where public authorities have enforced particular obligations with varying intensity over a lengthy period, a subsequent large-scale enforcement exercise may feel sudden. A perception of retrospective taxation does not, however, establish a retrospective rule. The inquiry must determine whether the obligation existed in the income year and whether the procedural limitation period for assessment was observed.

Questions for legal scrutiny

Does the media report identify verifiable official information or a participant's statement? Do the reported reactions concern the same category of taxpayers?

13 Legal certainty, good administration and proportionality

Legal certainty requires foreseeable statutory obligations, clear individual acts and service that can be verified. The formal existence of legislation is insufficient: individuals need a real opportunity to understand it and comply correctly. With digital income, the complex combination of the audience's location, the platform, the withholding agent and the Macedonian resident increases the risk of inadvertent error.

Proportionate administration must distinguish unreported income on which no foreign tax has been paid, income accompanied by confirmed foreign tax, and receipts that are not taxable personal income at all. An identical mass communication cannot replace individual legal findings. Particular care is needed to prevent an unverified income classification or duplicate bank entry from becoming a basis for enforcement.

16 Faktor. Published on 26 December 2025; reported statements, not a register of final assessments. Full source and link in the bibliography. Checked on 21 October 2026.

Trust in institutions is built through reasoned decisions, access to the case file, effective correction of errors and workable evidential requirements. These safeguards also protect the budgetary interest by encouraging voluntary tax compliance.

A domestic judicial source and its limits

By ruling U. no. 8/2020 of 16 February 2022, the Constitutional Court declined to institute proceedings to review the constitutionality of Article 16(3) PITA, concerning the market value of specified employment benefits. Its reasoning considers legality, evidence and valuation. The ruling offers indirect support for the need to give reasons for factual findings; it does not resolve the treatment of YouTube income, tax credits, electronic service or limitation periods for the receipts at issue.[17]

14 A hypothetical example and comparison of tax years

The example is wholly hypothetical and does not describe an identified client. Separate annual tax bases are assumed: MKD 180,000 for 2020 and MKD 120,000 for 2021. Income from one year is not used as evidence of the base for the other. These figures were selected editorially for illustration and were not derived from private bank records.

For the 2020 base, an act is assumed to have been prepared and dispatched electronically on 29 December 2025, with consent to electronic service disputed. If counting to the fifth day takes service into 2026, the relationship between service and interruption under Article 110 becomes material. This is the subject of the conditional analysis in Section 11, not proof of a definitive limitation bar.

In a separate hypothetical scenario concerning income earned in 2021, the illustrative ordinary deadline would be the end of 2026. The relevant tax year must be established independently for each assessment. Neither scenario reports findings from an identified individual case.

15 Proposals for improving legislation and administrative practice

Specialist platform guidance is needed, with examples covering advertising revenue, copyright income, subscriptions and independent services. It should clarify which documents establish gross income, distinguish foreign tax from commission, and explain the relationship between calendar-period statements and bank payments.

A transparent protocol for allowing foreign tax credits is also needed. The PRO guidance examined requires evidence from the competent foreign tax authority. Acceptance of additional platform evidence and official verification is the author's recommendation for improving practice; it is not presented as an existing, guaranteed entitlement to replace the required certificate with any platform statement.

Before notifications are issued in bulk, the administrative system should check for duplicates, verify the particular period, establish whether calculations have already been filed, and consider any foreign tax paid. For earlier years, an automated legal check should examine limitation periods and the status of all acts, subject to human review before any compulsory collection.

17 Constitutional Court. Operative part, point 1; reasoning, points 3 and 4. References are to the numbered points of the reasoning. Full source and link in the bibliography. Checked on 21 October 2026.

Questions for legal scrutiny

Could the PRO use a standard electronic evidence package? How can duplicate entries be prevented? How should foreign withholding be recorded and checks of time limits automated?

16 A proposed model for individual procedural scrutiny

A standardised procedure could begin with a written specification of receipts and their legal classification, continue with a request for the platform's original contractual and tax statements, and conclude with a reasoned decision. At each stage, it should be clear what is agreed, what is disputed and which documents are required.

The authority should then confirm the applicable substantive version of the legislation, the date of the taxable event, the tax base and the currency conversion. Any foreign tax paid and the conditions for credit must be established separately. The procedural checklist must include the date proceedings began, the date of the administrative tax act, the method of service, evidence of service, the deadline for a remedy and the date on which the act became final.

This structure reduces the risk of a calculation that is formally correct but factually unverified. It also enables precise judicial scrutiny where the taxpayer disagrees with the PRO's legal position.

17 Discussion of tax fairness and digital entrepreneurship

A fair tax system must not favour digital income merely because it is technically harder to monitor. Nor should it burden such income disproportionately through evidential rules ill-suited to the platform economy. Equality requires comparable treatment of comparable income, recognising genuine differences in how the work is organised.

For young creators, the risk lies not only in the amount of tax but in the unpredictability of the obligation: uncertainty about classification, deadlines, the source of income and foreign withholding. Clear rules encourage formal entrepreneurship; unclear rules increase administrative risk.

Public debate would be more constructive if institutions published their methodological criteria and the media distinguished documented irregularities from political or moral judgements. Legal criticism should preserve both the legitimacy of taxation and individual legal protection.

A limited comparison with Serbia

Serbia's official freelancers' portal links self-assessment rules to amendments to the Personal Income Tax Act published in No. 138/2022, identifying specific provisions on liability, standard expense deductions and calculation models. It offers two options, guidance, a calculator and quarterly reporting. The comparative lesson is the value of a publicly explained compliance mechanism; Serbian categories and deductions do not apply to Macedonian income. [Serbia]

Historical claims about protests, the period 2015–2022 and the settlement of past liabilities require a separate evidential file containing the Serbian legislation and measures then in force. They cannot be established solely from the current portal and are not used as evidence of an identical Macedonian case. This edition limits the comparison to the administrative and statutory framework examined.

18 Concluding observations

Taxation of digital income from abroad tests the legal system's ability to understand a cross-border economy while preserving taxpayers' safeguards. The system must recognise that a platform payment results from several legal relationships and does not invariably equal the tax base.

Relief for foreign tax paid, accurate legal classification and lawful service are integral to lawful and fair collection. Each dispute must be resolved on the evidence, carefully distinguishing the time limit for assessment from that for collection.

The conclusion is neither a call for a blanket tax exemption nor an endorsement of every administrative action. It calls for precision, proportionality and reasons grounded in evidence: principles that make lawful collection legitimate and sustainable.

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APPENDIX I Evidential matrix for digital platform transactions

The first category of evidence comprises platform statements. Each payment should record the transaction identifier, calendar period of earnings, date on which the amount was posted and payment date. This separates income earned from income received. The two may fall in different periods, and tax treatment must not be assumed before the statutory rule on when income arises has been examined.

The second category comprises banking evidence: the SWIFT/SEPA notification, receipt in the original currency, the amount actually converted into denars, the exchange rate applied and the booking date. A bank entry described only as an 'advertising payment' is an indication of its nature, not proof that no tax was withheld earlier. Reconciliation should therefore proceed from the gross platform entry to the net payment and then to receipt by the bank.

The third category comprises foreign tax documents. Form 1042-S, where available, and any withholding certificate should be examined for identity, period, income category and tax jurisdiction. It must be established whether the foreign tax concerns the same income being taxed by the Macedonian authority. Not every entry in a 'deduction' column is tax, and not every amount expressed in the bank's currency conclusively proves foreign tax.

The fourth category comprises the PRO's procedural evidence. The creation date, legal nature, dispatch and service of an act should each have a separate record. Where interruption of a limitation period is asserted, the authority should identify the particular act and the individual factual circumstances to which it relates. These records must be open to scrutiny by the taxpayer and, subsequently, the court.

APPENDIX II Model reasoning for allowing a foreign tax credit

Proper reasoning begins by identifying the foreign tax precisely. It records the state that collected it, the statutory type of charge, the taxpayer, the income period and the amount in the foreign currency. The supporting document and its contents should then be specified. Rejecting a document should not be reduced to the formula 'unsuitable'; the reasons should identify the missing factual or legal element.

The authority should next determine comparability with the domestic tax base. If the foreign tax concerns only revenue generated by an audience in the United States, this does not mean that the entire platform income has been taxed abroad. Foreign withholding may cover only a particular portion of gross earnings. The credit should accordingly be calculated on the relevant portion and within the domestic statutory ceiling.

Finally, the written act should set out a numerical formula and a clear conclusion: foreign tax credited, the amount not credited, the legal basis and the final additional domestic liability. The taxpayer should be able to establish whether any refusal results from insufficient evidence or a different legal classification. This standard reflects reasoned administrative decision-making; it does not create a new substantive tax exemption.

The reasons must distinguish the amount shown by the platform from the amount allowed in the domestic tax act. If foreign withholding is subsequently refunded or corrected, the consequences for a credit already claimed should be reconsidered under the applicable law. The formula in Section 7 illustrates a wholly comparable tax base; it is not a universal substitute for the statutory calculation.

The regime imposing 30% on the United States portion and that imposing up to 24% on worldwide earnings for an individual account without tax information are not interchangeable. The reasons should identify the regime applied and whether the amount is final, corrected or refunded. A platform percentage does not automatically produce an identical domestic tax-credit percentage. [Google tax]

APPENDIX III Questions for scrutiny of electronic service of a tax act

For electronic service, the first inquiry is whether the law at the relevant time permitted that form of service, through which communication channel, and whether its conditions were satisfied. The possibility that the law deems service to occur independently of actual reading must not be overlooked. The inquiry must therefore distinguish technical dispatch from the legal moment of service.

The second inquiry concerns identification. A link must exist between the document appearing in the system, the addressee, its particular number, the dispatch date and the service record. Confirmation that a user profile is active does not, by itself, identify the act served. Nor does an automatically generated summary reveal the entire procedure for making the act and challenging it.

The third inquiry concerns legal consequences: when the period for a remedy begins, when enforcement becomes possible, and whether the act interrupts a limitation period. These questions should not be answered by reference to a single technical status. The authority must identify a statutory basis for each consequence, and the affected person must be able to challenge it through an appropriate remedy.

APPENDIX IV Distinguishing four typical legal situations

First situation: a resident has received a net platform payment, but there is no evidence of foreign tax. The income category and domestic tax base must then be examined; an oral assertion that 'something must have been withheld' is insufficient. The positive obligation to report correctly does not disappear because platform documentation is unavailable.

Second situation: the platform has made a substantiated foreign tax withholding. The tax-credit mechanisms then require individual examination and a reasoned calculation. The tax authority's duty not to disregard relevant evidence does not require it to recognise every kind of amount paid without applying the statutory rules.

Third situation: an official calculation exists which the taxpayer says was never received. The dispute concerns the legal nature of the act and its service. A request for the complete tax case file and service records is especially useful. Neither the authority nor the taxpayer should assert definitive procedural consequences solely on the basis of a technical status.

Fourth situation: the authority takes its first measure shortly before a five-year period expires. Reading the year in the notification's heading is insufficient. The particular date, nature and effect of the act, any interruptions and the separate collection regime must be checked. This avoids both unfounded collection and an unfounded limitation defence.

APPENDIX V Recommendations for administrative and legislative dialogue

The first recommendation is that the PRO should prepare an official methodology specifically addressing digital income, available in Macedonian and accessible electronic

formats. It should clearly distinguish YouTube copyright and advertising revenue, sales of services, sponsorships, paid memberships and other models. This would reduce the risk of misclassification.

The second recommendation is a standard reconciliation table linking platform and bank records. Google statements contain several components, whereas the bank records the payment. The two sources can be reconciled automatically, but the final legal classification must remain subject to human scrutiny.

The third recommendation is a common protocol for foreign tax certificates, defining minimum evidential elements. Electronic certificates and authentication without unnecessary expense would be particularly valuable. Entitlement to a credit should be effective in practice, rather than merely declared on paper.

The fourth recommendation is an automated alert for potential expiry of limitation periods and defective electronic service. Before a liability is formally imposed, the system should indicate whether a tax act exists, whether a service record is available and which procedural time limits are running. Such checks would reduce administrative error and the burden of administrative litigation.

The fifth recommendation is annual public reporting of anonymised aggregate indicators concerning digital income, tax credits allowed and objections to service. Transparency must not disclose personal tax information, but it can improve public scrutiny of the methodology. Trust in tax administration is a public good, not merely a consequence of the number of assessments collected.

APPENDIX VI Substantive legal checks by calendar year

The legal assessment of income must begin by identifying the relevant calendar year precisely. For 2020 and 2021, the particular version of PITA and the income categories defined at the time must be examined. Applying a subsequently amended provision to earlier facts without examining the transitional provisions is methodologically unsound. A change in statutory terminology does not, by itself, establish a change in the economic nature of the income.

The next inquiry concerns when the income arose. In the platform economy, several events may be distinguished: revenue appearing in platform statistics, the closing of a monthly accounting period, payment authorisation and actual receipt by the bank. The particular income category and statutory provision determine which event matters in law. The monthly statement and bank statement should therefore be read together.

The third inquiry concerns currency conversion and the rules of taxation. Comparing nominal euro and denar amounts without the exchange-rate date and its statutory basis is insufficient. Particular attention should be paid to the deductions and allowances permitted for the relevant legal category. Ultimately, the authority should enable the taxpayer to reproduce the calculation using the same underlying material.

The historical matrix in Section 10 is an initial framework for scrutiny. A complete assessment requires a file containing the officially published principal text, each relevant amendment, commencement dates and applicable temporary measures. An announcement from 2025 or 2026 may help explain administrative practice, but cannot serve as the sole evidence of the content of a statutory obligation in 2020.

APPENDIX VII Remedies and a carefully framed procedural strategy

In the TPA text examined, Article 176 provides for administrative court proceedings challenging an administrative tax act; the former provisions on objections are marked as

deleted. No general fifteen-day administrative appeal period is therefore asserted for every PRO act. Under Article 26(1) of the Administrative Disputes Act (ADA), No. 96/2019, the general period for bringing proceedings is thirty days from service of the contested act, subject to statutory exceptions. Before any filing, the current amended text and the document's legal nature must be checked. [TPA; ADA]

Article 176(2) TPA and Article 28 ADA distinguish bringing proceedings from obtaining a stay of enforcement. Article 28 provides for a separate application to the court under the statutory conditions. An appeal against a judgment of the Administrative Court is a different remedy: Article 69 provides a fifteen-day period and determination by the Higher Administrative Court, subject to restrictions on admissibility. Proceedings against an administrative act must not be confused with an appeal against a judicial decision. [ADA, Articles 26–28 and 69]

The first stage of the procedural strategy is to obtain the case file. The taxpayer or authorised representative should obtain access to all official acts, notifications, acknowledgements of receipt, banking data and electronic logs. Inspection establishes an accurate chronology; it neither replaces a remedy nor automatically stops a statutory period that is already running.

The second stage is to identify the act that actually imposes liability. An informational invitation to file a calculation, a summary and a tax decision need not have identical effects. A formal appeal should therefore not be lodged against every piece of paper without examining its nature. Equally, a deadline in an individual notification should not be ignored merely because its heading appears informal.

The third stage is to bring the disputed issues together in an evidential submission: residence, income category, gross and net amounts, foreign tax, legal classification, service and limitation. A timely challenge to a particular item is stronger than a general assertion that 'all of this is unfair'. It also preserves the possibility of subsequent judicial review on clearly presented facts.

The final stage is to select the available remedy in accordance with the particular notice of remedies and the legislation in force. The time limits, deciding authority, possibility of a stay and consequences of failing to file a declaration must be checked. An important principle is that a request to inspect the file or make representations should not ordinarily be treated as automatically suspending another statutory period.

APPENDIX VIII A proposed digital evidential infrastructure for the PRO

Administrative improvement could rest on modular processing of the taxable event. The first module would identify foreign income and flag possible duplicates; the second would reconcile platform statements with bank records; the third would record foreign tax documents. Each module should generate a readable audit trail, rather than an opaque final figure.

An important feature should be automated scrutiny of time limits. Its function would not be to decide independently that a limitation period has expired, but to alert the official to a risk, identifying the relevant income date, document and possible procedural interruption. An official overriding the alert would have to provide brief legal reasons.

Electronic service should generate an independent evidential record containing the act's identifier, the addressee, the authorised channel, dispatch time and applicable rule determining when service occurs. This would prevent confusion between 'created', 'sent', 'visible' and 'read'. Accurate records protect both the authority against unfounded objections and the citizen against unverifiable assumptions.

Finally, the system should produce a clear calculation showing the platform, currency, gross earnings, foreign withholding, foreign-currency receipt, domestic tax base, credit and final liability. Those data should be correctable through contrary evidence. Technology would thus support, rather than replace, the individual statutory procedure.

Every automated alert should identify the source of the data, the version of the legislation applied and a verifiable calculation step. An authorised person must confirm the legal classification and outcome. This is a proposal for the tax administration's infrastructure, not a description of functionality already implemented in AI Advokat.

APPENDIX IX Final criteria for scholarly and practical assessment

A tax practice can be regarded as legally justified only where several cumulative criteria are met. The first is substantive legality: the relevant rule actually covers the particular income. The second is factual accuracy: the amount, period and payer have been correctly established. The third is international consistency: any foreign tax has been considered under the appropriate statutory and treaty provisions.

The fourth criterion is procedural verifiability: the taxpayer knows which act imposes the obligation, its basis, when it was served and how it may be challenged. The fifth is compliance with time limits: the authority distinguishes assessment from collection periods and properly proves the actions affecting limitation.

The sixth criterion is administrative fairness: the taxpayer is treated as a party with individual circumstances, rather than merely as the recipient of a template message. The seventh is public predictability: the rules are published in clear language and the tax administration explains the consequences of the platform model in good time.

Within this framework, the paper's central question receives a concrete answer. Digital earnings should not be a tax exception, but tax enforcement should not become an exception to legal safeguards. A responsible institution may demand tax lawfully due; the citizen is entitled to an accurate calculation, statutory allowances and an effective opportunity for scrutiny. This is a balanced standard for a modern tax state.